

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ VETERAN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ SERVICE-DISABLED ☐ 8(A) ☐ SDVOSB		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE	12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)		13b. RATING 14. METHOD OF SOLICITATION REQUEST ☐ INVITATION ☐ FOR QUOTE ☐ FOR BID ☐ FOR PROPOSAL (RFQ) (IFB) (RFP)
15. DELIVER TO CODE			16. ADMINISTERED BY CODE		
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED					
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED			☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Section A - Solicitation/Contract Form

GRADE D BREATHING AIR COMPRESSOR AND REGENERATIVE AIR DRYER

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	11	Months		
0002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	11	Months		
0003	SHIPPING COST - INBOUND/ OUTBOUND Pricing Arrangement: Firm Fixed Price	1	Job		
Option Line Item 1001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 1002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 2001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 2002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
	Rental - (2) Grade D Air Compressors - 800 cubic feet per				

Option Line Item 3001	minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 3002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 4001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 4002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 5001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 5002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 6001	Rental - (2) Grade D Air Compressors - 800 cubic feet per minute (cfm) at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		
Option Line Item 6002	Rental - (2) Regenerative Air Dryer - 930 cubic feet per minute (cfm) minimum at 125 psig Monthly Rate: Weekly Rate: Daily Rate: Pricing Arrangement: Firm Fixed Price	1	Months		

Section C - Description/Specifications/Statement of Work

1. Scope:

- 1.1 Title: Grade D Air Compressors and Regenerative Air Dryers Rental for Dry Air Layup
- 1.2 Service rental from vendor to provide two (2) 800 cubic feet per minute (CFM) Grade D Air Compressors, and two (2) 930 cfm minimum Regenerative Air Dryer Units meeting the specifications provided herein:
 - 1.2.1 Provide two (2) Grade D Air Compressors and two (2) Regenerative Air Dryers to support work at Naval Operating Base (NOB) Norfolk, Norfolk, VA. At the conclusion of POP, two (2) Grade D Air Compressors and two (2) Regenerative Air Dryers will be returned to vendor.
 - 1.2.2 Work to start and end at Naval Operating Base (NOB) Norfolk, Norfolk, VA.

2. Reference:

- 3.1. CGA G-7.1
- 3.2. ISO 8573-1
- 3.3. NAVFAC P-307
- 3.4. FAR 22.102-1(a) (Safety)
- 3.5. OSHECM Chapter 250

3. General Specifications:

3.1 Grade "D" Air Compressor PARAMETERS:

- 3.1.1 The air compressors shall provide at least 800 cubic feet a minute (CFM) at 125 psig and shall be of an oil free, rotary screw design delivering Grade "D" air per CGA G-7.1 or oil free air per ISO 8573-1 Class 0.
- 3.1.2 Each air compressor must have a moisture separator (electric type) after cooler.

3.2 Grade "D" Air Compressor REQUIREMENTS:

- 3.2.1 Compressors must be of a rotary screw design. An oil flooded rotary screw design with attached oil separator is not acceptable.
- 3.2.2 Compressors must be a fixed speed design. A variable speed design is not acceptable.
- 3.2.3 The air compressors shall be electrically powered, suitable for 460 VAC, 3-phase, 60HZ, capable of running on a 400 amp circuit breaker.

3.2.4 The air compressors must be capable of running 24 hours/day, 7 days/week.

3.2.5 The compressors must have a gearbox casing designed to maintain a vacuum on its oil contents in order to prevent a potential of contamination of the air supply in the event of a seal failure.

3.2.6 The air compressors shall be equipped with fully automatic switching controls, alarms, and indicators so that the compressor packages require monitoring no more than once every 24 hours by operators after start-up.

3.2.7 Units will be in continuous use outdoors, and will be directly exposed to everyday weather and salt water air. All exposed components must be weather resistant. All components must meet or exceed NEMA Type 4 for outdoor use. It is the contractor's responsibility to provide any protective coverings for the units.

3.2.8 Whip-check devices must be supplied with compressors.

3.3 Grade "D" Air Compressor CONSTRUCTION

3.3.1 The air compressors shall be wholly contained in one container or skid per compressor. The container/skid shall be constructed to be portable, capable of being both transported by forklift and crane.

3.3.2 The air compressors shall comply with the applicable OSHA regulations.

3.3.3 The air compressors shall comply with the applicable ASME Boiler and Pressure Vessel Code.

3.3.4 Relief valves shall have intact wire seals on their adjustment caps and shall bear tags indicating the set point, testing activity and test date.

3.3.5 Pressure gauges shall be in calibration to manufacturer standards and shall bear labels showing calibration which will not expire during the contract period.

3.3.6 Power cable end fittings will be lugged and color coded to indicate proper phasing. See Appendix A of this section - "Interface Requirements for Rental Equipment Hook-up to NNSY Temporary Service" for proper electrical connections required.

3.3.7 The inlet and outlet of air compressors shall be 2" Male NPT. If units are not equipped with 2" Male NPT inlet/outlet connections, contractor shall provide and preinstall adapters as required at no cost to the government. See Appendix A of this section- "Interface Requirements for Rental Equipment Hook-up to NNSY Temporary Service" for proper mechanical connections required.

3.3.8 The equipment shall be outfitted with suitable attachments for overhead lifting.

3.3.9 Each lifting attachment shall be capable of supporting one half the gross weight of the equipment with a design factor of five to one based on ultimate strength.

3.3.10 Each lifting attachment shall be designed to accept a standard anchor shackle (Federal Specification RR-C-271D, type IVA) which is capable of supporting one half the gross weight of the equipment.

3.3.11 Design of the lifting attachments shall be such that the shackles are not side loaded.

- 3.3.12 Each lifting attachment shall be conspicuously marked in a contrasting color "Lift Here". Letters shall have a minimum height of 1".
- 3.3.13 The equipment shall be marked in a prominent location with the gross weight. Marking shall be upper case letters of a contrasting color, with a minimum height of 1". Marking shall include the units (i.e. "pounds", "long tons", etc.).
- 3.3.14 The equipment shall be provided with a lifting sketch / rigging diagram.
- 3.3.15 The lifting sketch shall detail any specific requirements and / or configurations that must be met prior to lifting (i.e. "engage swing lock", "Tilt mast back fully", "Rotate lifting basket over side", "Utilize 10' minimum length slings", "Spreader beam required", etc.).

3.4 Regenerative Air Dryer PARAMETERS:

- 3.4.1 Regenerative air dryer units shall be capable of handling at least 930 cubic feet a minute (CFM) at 125 psig. Regenerative air dryer units must be able to provide a dew point of -65 degrees F.

3.5 Regenerative Air Dryer REQUIREMENTS:

- 3.5.1 The regenerative air dryer units shall be electrically powered, suitable for 110/120 VAC, 1-phase, 60HZ. The dryers shall be self-contained so that the system is capable of producing dry air WITHOUT any additional utilities.
- 3.5.2 The regenerative air dryer units must provide oil-free air.
- 3.5.3 The regenerative air dryer units must be capable of running 24 hours/day, 7 days/week.
- 3.5.4 The regenerative air dryer units shall be equipped with fully automatic switching controls, alarms, and indicators so that the dryer package requires monitoring no more than once every 24 hours by operators after start-up.
- 3.5.5 The regenerative air dryer units shall include the following to meet the requirements of this specification:
- a. Regenerative Air Dryer units are to be heatless, non-refrigerated, twin tower design of a regenerative nature utilizing hygroscopic desiccant with automatic condensate purges. One tower shall provide dry air while the other is in regeneration mode.
- 3.5.6 Units will be in continuous use outdoors, and will be directly exposed to everyday weather and salt water air. All exposed components must be weather resistant. All components must meet or exceed NEMA Type 4 for outdoor use. It is the contractor's responsibility to provide any protective coverings for the units.

3.6 Regenerative Air Dryer CONSTRUCTION

- 3.6.1 The regenerative air dryer units shall be wholly contained in one container or skid per dryer. The containers/skids shall be constructed to be portable, capable of being both transported by forklift and crane.
- 3.6.2 The regenerative air dryer units shall comply with the applicable OSHA regulations.
- 3.6.3 The regenerative air dryer units shall comply with the applicable ASME Boiler and Pressure Vessel Code.
- 3.6.4 Relief valves shall have intact wire seals on their adjustment caps and shall bear tags indicating the set point, testing activity and test date.
- 3.6.5 Pressure gauges shall be in calibration to manufacturer standards and shall bear labels showing calibration which will not expire during the contract period.
- 3.6.6 Power cable end fittings will be lugged and color coded to indicate proper phasing. See Appendix A of this section - "Interface Requirements for Rental Equipment Hook-up to NNSY Temporary Service" for proper electrical connections required.
- 3.6.7 The inlet and outlet of each Regenerative Air Dryer shall be 2" Male NPT. If units are not equipped with 2" Male NPT inlet/outlet connections, contractor shall provide and preinstall adapters as required at no cost to the government. See Appendix A of this section- "Interface Requirements for Rental Equipment Hook-up to NNSY Temporary Service" for proper mechanical connections required.
- 3.6.8 The equipment shall be outfitted with suitable attachments for overhead lifting.
- 3.6.9 Each lifting attachment shall be capable of supporting one half the gross weight of the equipment with a design factor of five to one based on ultimate strength.
- 3.6.10 Each lifting attachment shall be designed to accept a standard anchor shackle (Federal Specification RR-C-271D, type IVA) which is capable of supporting one half the gross weight of the equipment.
- 3.6.11 Design of the lifting attachments shall be such that the shackles are not side loaded.
- 3.6.12 Each lifting attachment shall be conspicuously marked in a contrasting color "Lift Here". Letters shall have a minimum height of 1".
- 3.6.13 The equipment shall be marked in a prominent location with the gross weight. Marking shall be upper case letters of a contrasting color, with a minimum height of 1". Marking shall include the units (i.e. "pounds", "long tons", etc.).
- 3.6.14 The equipment shall be provided with a lifting sketch / rigging diagram.
- 3.6.15 The lifting sketch shall detail any specific requirements and / or configurations that must be met prior to lifting (i.e. "engage swing lock", "Tilt mast back fully", "Rotate lifting basket over side", "Utilize 10' minimum length slings", "Spreader beam required", etc.).

3.7 MARKINGS:

3.7.1 The regenerative air dryer units shall have the (1) air capacity, (2) minimum/maximum supply pressure, (3) minimum/maximum operating temperature, and (4) the dew point range stamped on a metal plate attached to the equipment. Each major component of the system shall have the manufacturer's name and the manufacturer's serial number stamped on a metal plate attached to the component. No metal stamping is permitted on any surface subjected to high stresses in service, except as permitted by the applicable portions of the ASME Boiler and Pressure Vessel Code.

3.7.2 The air compressors shall have the (1) air capacity, (2) minimum/maximum supply pressure, (3) minimum/maximum operating temperature, and (4) the dew point range stamped on a metal plate attached to the equipment. Each major component of the system shall have the manufacturer's name and the manufacturer's serial number stamped on a metal plate attached to the component. No metal stamping is permitted on any surface subjected to high stresses in service, except as permitted by the applicable portions of the ASME Boiler and Pressure Vessel Code.

4. Period of Performance

4.1 POP: See Schedule

5. Contractor Requirements:

5.1 Contractor shall supply POC's information (name and phone number) on the equipment.

5.2 Deliver and pick up air compressors at location to be determined by POC listed above.

5.3 Deliver and pick up regenerative air dryer units at location to be determined at delivery by POC listed above.

5.4 If necessary, after delivery, connect any accessory equipment to the air compressors and/or regenerative air dryers. Ensure the air compressors and regenerative air dryer units are set up and ready for NNSY to connect shipboard when required.

5.5 Contractors provide any material that is required for proper operation of the air compressors and/or regenerative air dryers and accessory equipment throughout the rental period at no extra cost.

5.6 Provide engineering drawings or sketches showing the general arrangement of the air compressors and regenerative air dryer units. These drawings and sketches shall show the flow path through the air compressors and regenerative air dryer units and all auxiliary equipment that are part of the system.

5.7 Provide the separate commercial operating instruction manuals for the air compressors and regenerative air dryer units and all other major components.

5.8 Provide 24 hours a day, seven-days a week on-call repair service during the rental period at no additional charge. The contractor will be responsible for initiating repairs on-site, at Naval Operating Base (NOB) Norfolk, within 24 hours of verbal or written notification that the equipment has malfunctioned at no additional charge. The contractor will replace the malfunctioning unit or component if the air compressors and/or regenerative air dryer units cannot be returned to service within 72 hours of being notified of the original malfunction at no additional charge. Provide all parts requiring repair or replacement at no additional charge.

5.9 When the equipment is required to be moved to the contractor's facility for repair or replacement, the contractor shall be responsible for loss or damage from the time it leaves the government site until it is returned to the government site.

5.10 Contractor personnel shall notify the Temporary Service Zone Manager (TSZM) POC for authorization prior to any work or maintenance on rental unit.

5.11 For lost items by Government personnel and equipment damaged beyond normal wear and tear, Contractor must submit a claim separate from rental. This is to be submitted no later than 60 days past the end of the rental period.

5.12 The Government reserves the right to return air compressors and/or dryer units at any time prior to the expiration of the rental period. The contractor agrees to prorate costs for the time the air compressors and/or regenerative air dryers are in use by NNSY only. The Government agrees to give the contractor twenty-four (24) hours-notice for the return of the air compressors and/or regenerative air dryer units if the return is prior to the expiration of rental period.

5.13 Contractor to provide options to allow NNSY to extend rental of air compressors and/or regenerative air dryer units on a monthly basis. The Government reserves the right to extend the rental period on a monthly basis if necessary for up to six (6) months. The Government reserves the right to return any number of units at any time prior to the expiration of the extension rental period. The contractor agrees to prorate costs for the time the air compressors and regenerative air dryer units are in use by NNSY only.

5.14 Contractor to contact POC 10 business days prior to the end of rental period to confirm pickup date.

5.15 Preparation For Delivery:

5.15.1 The air compressors and regenerative air dryer units must be preserved and packaged per the manufacturer's commercial practice. Packing shall be in a manner that will ensure acceptance by a common carrier and safe delivery at the destination. The shipping container and method of packing must comply with the Uniform Freight Classification Rules or other carrier regulation as applicable to the mode of transportation.

6. Government Responsibility:

6.1 Provide operators for equipment.

6.1.1 Perform basic monitoring/visual checks.

6.1.2 Equipment movements within or to/from NOB.

6.1.3 Provide point of contact for delivery, escort and notification to contractor for rental pickup.

6.1.4 Lost items and equipment damage beyond normal wear and tear

7. Points Of Contact:

7.1 Technical POC: TBD at AWARD

8. Safety Requirements:

8.1 "Per FAR 22.102-1(a) entitled "Safety", Contractors are hereby informed that their employees or representatives present on property under Norfolk Naval Shipyard cognizance must follow Federal and State OSHA requirements OSHE OSHECM Chapter Hazardous Energy Control (HEC) requirements or safety requirements for site specific location of the contract.

a. Contractors and Non-NNSY Government Agencies (NNGAs) are hereby informed that their employees or representatives present on property under Norfolk Naval Shipyard (NNSY) cognizance must adhere to Federal OSHA requirements for hazardous energy control IAW 29 CFR 1915.89 and must follow Hazardous Energy Control (HEC) procedures as identified in NAVSEA's Occupational Safety, Health, and Environment Corporate Manual (OSHECM) Chapter 250 (latest revision), when performing work under NNSY contract. All HEC work to be performed by Contractors and NNGAs requires that NNSY Technical Points of Contact (TPOCs) and/or Contracting Officer's Representatives (CORs) be notified of the HEC scope of work prior to starting work. Any changes or deviations in the initial scope of HEC work requires the NNSY TPOCs and/or CORs be informed of the change/deviation. Appendix 250.B-1 through B-3 of OSHECM Chapter 250 for multiple employer work identifies when Contractors and NNGAs are required to assign their Lockout/Tags-Plus Coordinator (LOTC) to coordinate HEC work with the cognizant NNSY LOTC. HEC locks shall be provided by the contractor or NNGA for their employees use. The HEC locks shall have red bodies with name labels or name tags affixed, identifying who installed the HEC lock(s) and a point of contact telephone number. HEC lock name labels and tags must be made of materials that will hold up to the environment to which they are exposed. HEC tags used for Tags-Plus HEC work shall be provided by the cognizant NNSY LOTC to the contractor or NNGA for their use if machinery, equipment, or systems (MES) cannot be locked out. OSHECM Chapter 250 Tags-Plus procedures will be strictly followed.

b. Contractors and NNGAs may obtain electronic copies of OSHECM Chapter 250 (latest revision) and access the OSHA 1915.89 web site by using the following link to NNSY's public access web site: <http://www.navsea.navy.mil/shipyards/norfolk/default.aspx>

c. Names and contact information for NNSY LOTCs and/or the Building Monitor will be provided by NNSY TPOC and/or Contracting Officer Representative set forth elsewhere in this award document.

Defense Biometric Identification System and NAVSEA Badging (REQUIRED FOR ALL CONTRACTS)

All contractors, with the exception of permanent party (or "seated" contractors with Common Access Cards (CACs), will be required to obtain a DBIDS card to gain access to NNSY.

Procedure for receiving a DBIDS card:

- a. Contractor will complete the SECNAV 5512 form(s) and forward them to their NNSY Sponsor/Contracting Officer's Representative (COR).
- b. The sponsor will complete the CVS spreadsheet utilizing the information on the completed SECNAV5512 forms and forward all documents to Commander Navy region Mid-Atlantic (CNRMA) for vetting.
- c. CNRMA will add the contractor to the "179-Day List" which is utilized by the Pass and ID office to create the DBIDS card.
- d. Once on the 179-Day List, the contractor may go to Pass and ID to have their DBIDS card generated.
- e. Green NAVSEA access badges can be generated at this point with contractors providing proof of U.S. Citizenship (Birth Certificate/ US Passport).

Portable Electronic Devices (PEDs) (REQUIRED FOR ALL CONTRACTS)

A PED is defined as any non-stationary electronic apparatus with singular or multiple capabilities of, but not limited to recording, storing, and/or transmitting data, voice, video, or photo images (e.g., cell phones, laptops, tablets and wearable devices such as fitness bands and smart watches).

a. NAVSEA 04 Ser 04/281 IMPLEMENTATION PLAN FOR ALLOWING CAMERA-PORTABLE ELECTRONIC DEVICES WITHIN THE CONTROLLED INDUSTRIAL AREA

b. NAVSEAINST 2200.1A PORTABLE ELECTRONIC DEVICES POLICY

c. SECPROMAN Vol 1 5510.36 Rev E

In accordance with ref (a), personally owned camera enabled PEDs will be authorized inside of the Controlled Industrial Area (CIA) and all

Security Islands. Camera enabled PEDs will remain unauthorized within Controlled Nuclear Information Areas (CNIAs), Nuclear Work Areas (NWAs) and Open Storage Areas.

All PEDs, camera enabled or not, are still prohibited within NWAs and Open Storage Areas.

The allowance of camera enabled PEDs inside of the CIA and Security Islands does not negate existing photography policies. Unofficial photography, filming of video, or live streaming from the camera-enabled PED remains prohibited within the CIA or any NAVSEA controlled space outside of the CIA. Further, audio recordings (both digitally or magnetically) in NAVSEA spaces is prohibited without the approval of the Code 1120 Security Director.

Submarine SPECIFIC PEDs Instructions: In accordance with COMSUBLANT/ COMSUBPACINST 2075.1C, the use of PEDs while in or on Department of Navy Submarines are prohibited.

Access to Classified Information or Spaces

All contractors executing this contract are required to have a minimum security clearance of _____ (Completed by SME).

All contractors requiring access to classified information, or those spaces containing un-sanitized classified information, shall possess a final security clearance.

In addition to completing the steps above, if the contractor in accordance with the requirements of the contract, the contracting company's Facility Security Officer is required to submit a visit request in the Defense Information System for Security (DISS) to Security Management Office (SMO) Code 001816.

The SMO Code(s) of the ship or command the contractor is visiting are not to be utilized.

After receiving a DBIDS card, their visit request, security clearance and access permissions (verified in DISS) are reviewed to ensure they meet the minimum security requirements set forth in the contract. Once verified, the contractor will receive the appropriate NAVSEA access badge.

RESTRICTED DATA SPECIFIC

All contractors requiring a red NAVSEA badge and access to Restricted Data (RD) shall have a final security clearance.

Red NAVSEA badge personnel may require access to Nuclear Areas, Nuclear Information, Nuclear equipment, Naval Nuclear Propulsion Information (NNPI), RD, and Not Releasable to Foreign Nationals (NOFORN) data due to the nature of the work being performed on Naval Nuclear propulsion systems.

A red NAVSEA badge is necessary for the execution of nuclear and some non-nuclear work; inclusive of the propulsion plant and secondary spaces as well as those systems which support the propulsion plants which may not be located in the propulsion plant when any of those spaces can't be sanitized.

Access to RD and the issuance of red NAVSEA badges will be issued in accordance with NAVSEA M-5510.2.

CONTROLLED UNCLASSIFIED INFORMATION ACCESS

The DoD will provide information to contractors and will identify all information which is Controlled Unclassified Information (CUI) via the contracting vehicle, in whole or part, and will mark such documents, material, or media in accordance with this issuance.

When CUI is generated by non-DoD entities protective measures and dissemination controls, including those directed by relevant law, regulation, or government-wide policy, will be articulated in the contract, grant, or other legal agreement, as appropriate. DoD contracts must require contractors to monitor CUI for aggregation and compilation based on the potential to generate classified information pursuant to security classification guidance addressing the accumulation of unclassified data or information. DoD contracts require contractors to report the potential classification of aggregated or compiled CUI to a DoD representative.

Contractors, pursuant to mandatory DoD contract provisions, will submit unclassified DoD information for review and approval for release in accordance with the standard DoD Component processes and DoDI 5230.09.

All CUI records must follow the approved mandatory disposition authorities whenever the DoD provides CUI to, or CUI is generated by, non-DoD entities in accordance with Section 1220-1236 of Title 36, CFR, Section 3301a of Title 44, U.S.C., and this issuance.

SEATED CONTRACTOR SPECIFIC

All contractors who receive CACs and are granted access to Navy or NNSY information technology systems and are stationed at NNSY as their permanent work location are considered to be "seated" contractors.

All seated contractors will be required to report to BLDG 1502, 2nd floor to the Personnel Security Office (Code 1127) for check-in. Code 1127 will own the seated contractor in the system of record and will be responsible for the maintenance for the contractor's security profile.

All seated contractors will be required to attend, at a minimum, the security education portion of NNSY New Employee Orientation.

The security education portion will contain, but is not limited to, Antiterrorism Level 1, Combatting Trafficking in Persons, Active Shooter training, Information Security, Personnel Security, and Operations Security Awareness training.

Further, all seated contractors will be required to complete all annual computer based security refresher training, which is tracked and verified by the training coordinator for the code to which the contractor is assigned.

Requirements

GRADE D BREATHING AIR COMPRESSOR AND REGENERATIVE AIR DRYER

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-211-H001 ACCESS TO THE VESSEL(S)

(Oct 2018)

Officers, employees and associates of other prime Contractors with the Government and their subcontractors, shall, as authorized by the Supervisor, have, at all reasonable times, admission to the plant, access to the vessel(s) where and as required, and be permitted, within the plant and on the vessel(s) required, to perform and fulfill their respective obligations to the Government. The Contractor shall make reasonable arrangements with the Government or Contractors of the Government, as shall have been identified and authorized by the Supervisor to be given admission to the plant and access to the vessel(s) for office space, work areas, storage or shop areas, or other facilities and services, necessary for the performance of the respective responsibilities involved, and reasonable to their performance.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

Section D - Packaging and Marking

Additional Regulation or Supplemental Clauses Incorporated by Full Text

D-223-W001 **EXPLOSIVE OR HAZARDOUS MATERIALS--PACKAGING & LABELING** **(Oct 2018)**
(NAVSEA) (OCT 2018)

(a) Packaging, Packing, Marking and Labeling of Explosive materials to be shipped by any mode or combination of transportation modes shall be prepared (properly classed, described, packaged, marked, labeled, placarded, etc.) for shipment in accordance with all applicable Department of Transportation/Department of Defense regulations in effect at time of shipment.

(b) In the event of a conflict between specific requirements in the contract or order and existing applicable regulations, the regulations take precedence. Under no circumstance shall the contractor knowingly use materials, markings or procedures that are not in accordance with law and regulations applicable to the mode of transportation employed.

Mode of Transportation/Applicable Regulation

1. Domestic Highway/A
2. Domestic Commercial Air/A, B
3. Export Surface/A, C, E
4. Export Commercial Air/A, B, E
5. Export Military Air/D, E

List of Regulations

- A. Code of Federal Regulations Title 49
- B. International Air Transport Association (IATA) Dangerous Goods Regulation
- C. International Maritime Organization (IMO) Dangerous Goods Regulation
- D. Air Force Joint Manual (AFJAM) Preparation of Hazardous Materials for Military Air Shipment
- E. Export shipments are also subject to the domestic regulations indicated to transport the material to the port of embarkation (POE).

(c) Markings listed below are a minimum for acceptance of the material:

1. Proper Shipping Name
2. UN Number
3. Name and Address of Shipper and Consignee

(d) Additional Required Markings for EXPLOSIVE Material:

1. National Stock Number _____ or Local Stock Number _____
2. Material Item Nomenclature
3. Lot # / Quantity contained in this package
4. Net Explosive Weight / Gross Weight of Package

(e) A packing list must be placed on the outside of the package with the shipping papers (i.e. DD 250, DD 1149, etc.) enclosed. The shipping papers must include the technical point of contact at Destination for Delivery. All other documentation should be placed in a separate packing list.

(End of Text)

Section E - Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
0002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 1002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276

	PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 2002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 3001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 3002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276

	PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 4001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 4002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 5001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 5002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276

	PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 6001	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 6002	Inspection and Acceptance Location Both Destination Instructions: SEE STATEMENT OF WORK DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD

Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Delivery Period From 15 Jun 2026 to 15 May 2027 Period of Performance From 15 Jun 2026 To 15 May 2027	11 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
0002	Delivery Period From 15 Jun 2026 to 15 May 2027 Period of Performance From 15 Jun 2026 To 15 May 2027	11 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
0003	Delivery Period From 15 Jun 2026 to 15 May 2027 Period of Performance From 15 Jun 2026 To 15 May 2027	1 Job	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD

Option Line Item 1001	Delivery Period From 16 Jun 2027 to 15 Jul 2027 Period of Performance From 16 Jun 2026 To 15 Jul 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 1002	Delivery Period From 16 Jun 2027 to 15 Jul 2027 Period of Performance From 16 Jun 2027 To 15 Jul 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 2001	Delivery Period From 16 Jul 2027 to 15 Aug 2027 Period of Performance From 16 Jul 2027 To 15 Aug 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 2002	Delivery Period From 16 Jul 2027 to 15 Aug 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD

	Period of Performance From 16 Jul 2027 To 15 Aug 2027		
Option Line Item 3001	Delivery Period From 16 Aug 2027 to 15 Sep 2027 Period of Performance From 16 Aug 2027 To 15 Sep 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 3002	Delivery Period From 16 Aug 2027 to 15 Sep 2027 Period of Performance From 16 Aug 2027 To 15 Sep 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 4001	Delivery Period From 16 Sep 2027 to 15 Oct 2027 Period of Performance From 16 Sep 2027 To 15 Oct 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
	Delivery Period From 16 Sep 2027 to 15 Oct 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF

Option Line Item 4002	Period of Performance From 16 Sep 2027 To 15 Oct 2027		1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 5001	Delivery Period From 16 Oct 2027 to 15 Nov 2027 Period of Performance From 16 Oct 2026 To 15 Nov 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 5002	Delivery Period From 16 Oct 2027 to 15 Nov 2027 Period of Performance From 16 Oct 2027 To 15 Nov 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD
Option Line Item 6001	Delivery Period From 16 Nov 2027 to 15 Dec 2027 Period of Performance From 16 Nov 2027 To	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD

	15 Dec 2027		
Option Line Item 6002	Delivery Period From 16 Nov 2026 to 15 Dec 2027 Period of Performance From 16 Nov 2027 To 15 Dec 2027	1 Months	Place of Performance DoDAAC: N42158 CountryCode: USA NORFOLK NAVAL SHIPYARD GF 1 NORFOLK NAVAL SHIPYARD, BUILDING 276 PORTSMOUTH, VA 23709-1001 UNITED STATES TO BE DETERMINED AT AWARD, NORFOLK NAVAL SHIPYARD Email: TO BE DETERMINED AT AWARD

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.247-34	F.o.b. Destination.	Jan 1991		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-211-W001 PARTIAL DELIVERIES (NAVSEA) (OCT 2018) **(Oct 2018)**

Partial deliveries will not be accepted without specific approval from the Contracting Officer.

(End of Text)

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

NOT APPLICABLE

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2IN1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	==
Issue By DoDAAC	==
Admin DoDAAC	==
Inspect By DoDAAC	==
Ship To Code	==
Ship From Code	==
Mark For Code	<u>TBD</u>
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	==
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-232-H002 H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)

(Feb 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) (https://www.acq.osd.mil/dpap/dars/pgi/pgi_htm/current/PGI204_71.htm#payment_instructions).

(End of text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)

(Jan 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023)

(Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is: TBD

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(ii) The Contract Specialist is: TBD

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(iii) The Administrative Contracting Officer (ACO) is: TBD

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is: TBD

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is: TBD

Name:
Address:
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(f) The Technical Point of Contact (TPOC) is the contracting officer's representative for technical matters when a COR is not appointed. The TPOC is responsible for technical issues of contract administration, such as providing all items of Government Furnished Information (GFI), Government Furnished Material (GFM) and Government Furnished Equipment (GFE) if specified in the contract as well as the inspection and acceptance of all contract deliverables.

The Technical Point of Contact (TPOC) is: TBD

Name:
Address: [*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(g) The Alternate Technical Point of Contact (ATPOC) is responsible for TPOC responsibilities and functions in the event that the TPOC is unavailable due to leave, illness, or other official business.

The Alternate Technical Point of Contact (ATPOC) is: TBD

Name:
Address:
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(h) The Authorized Ordering Person(s) for Per-Call Maintenance is responsible for issuing and maintaining records for any per-call orders for remedial maintenance placed under this contract. No per-call order shall be placed outside the scope of this contract and the cumulative total of all orders shall not be in excess of any not-to-exceed amount specified in the contract. Per-call orders shall not, in any way, modify any terms and conditions of the contract.

(i) The Authorized Ordering Person(s) for Per-Call Maintenance is: TBD

Name:
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx];
E-mail: [*]

(j) The Contractor's point of contact for performance under this contract is: TBD

Name:
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent

company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
[insert specific Departments]	[insert times]	

(g) All deliveries to the Receiving Officer, ___ [Negotiator insert delivery location], shall be made Monday through Friday from ___ [Negotiator enter beginning hour of operation] to ___ [Negotiator enter closing hour of operation], local time. Deliveries will not be accepted after ___ [Negotiator enter closing hour of operation]. No deliveries will be accepted on federal government holidays.

(End of Text)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Feb 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Feb 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Feb 2026		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Feb 2026		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026. (Deviation 2026-O0038)	Feb 2026		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	Feb 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Apr 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Feb 2026		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.232-18	Availability of Funds.	Apr 1984		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-36	Payment by Third Party. (Deviation 2026-O0038)	Feb 2026		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Feb 2026		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Apr 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support.	Jan 2023		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services.	Jul 2021		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.246-7003	Notification of Potential Safety Issues.	Jan 2023		
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	Oct 2010		
252.246-7008	Sources of Electronic Parts.	Jan 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within ANYTIME PRIOR TO CONTRACT EXPIRATION[insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation 2026-O0038)

(Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION 2026-O0038)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under 532490 NAICS Code assigned to TO BE DETERMINED contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires.

(May 2014)

Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
HEAVY EQUIPMENT OPERATOR MECHANIC	<u>WG-10/ 53.1%</u>

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

FAR Clauses: <https://www.acquisition.gov/browse/index/far>

DFARS Clauses: <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html>

(End of clause)

52.252-6 Authorized Deviations in Clauses.

(Nov 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Acquisition Regulations System, Department of Defense (48 CFR 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

Section J - List of Attachments

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	TECHNICAL CAPABILITY - FORM	Statement of Work		01 May 2026
02	APPENDIX A - Specifications	Statement of Work		01 May 2026

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

FAR Clauses Incorporated by Full Text

52.219-1 Small Business Program Representations. (Deviation 2026-O0038) (Feb 2026)

Small Business Program Representations (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 532490.

(2) The small business size standard is 1350.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

- (i) Is set aside for small business and has a value above the simplified acquisition threshold;
- (ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that-

- (i) it ☐ is, ☐ is not a small business concern; or
- (ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____
_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

- (1) Punished by imposition of fine, imprisonment, or both;
- (2) Subject to administrative remedies, including suspension and debarment; and
- (3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

52.212-1 Instructions to Offerors--Commercial Products and Commercial Services.

As prescribed in 12.205(a)(1), insert a clause substantially as follows:

Instructions to Offerors--Commercial Products and Commercial Services (Deviation Date)

INSTRUCTIONS TO OFFERORS - COMMERCIAL ITEMS

This requirement will be prepared in accordance with the information in FAR Part 12, as supplemented with additional information included in this notice. Accordingly, a Simplified Streamlined acquisition process will be used in the evaluation and award of the contract.

Quotes are due on or before **05/08/2026 at 0900 AM**, Eastern. Quotations shall be emailed to Contract

Specialist and Contracting Officer, Rebekah Riggins rebekah.r.riggins.civ@us.navy.mil. Questions for clarification must be submitted by **05/15/2026 at 0900 AM, Eastern**.

*REQUIRED DOCUMENTS

Technical Acceptability will be evaluated to determine an overall rating of "acceptable" or "unacceptable". This will be determined by evaluating the ability of the vendor to provide equipment that meets all specifications and delivery requirements. It is the contractor's responsibility to ensure that their quotation clearly demonstrates their ability to meet the requirements.

Quoters may propose on one/some/all of the items identified.

Unless specifically stated otherwise, submission of a quote means the quoter agrees to partial contract award.

The completion and submission of the above items will constitute a quote and will be considered the vendor's unconditional assent to the terms and conditions of this solicitation and any attachments and/or exhibits.

Failure to provide all of these documents by the required date and time may preclude a quotation from award consideration at the discretion of the Government.

Quotations shall be valid for 60 days.

Quotations will consist of the following documents submitted together in Adobe Acrobat .pdf format:

Period of Performance as follows: June 15, 2026 - May 15, 2027, with (2) six-month option periods.

AS PROVIDED IN SECTION F OF THIS DOCUMENT

Completed and signed standard form SF1449 with unit prices for each line item in accordance with the

Contract Line Item Number (CLIN).

Additionally, each offeror must provide the following information with the quote:

1. The Request for Quotes (RFQ) number;
2. The Name, Address, Telephone Number, and Cage Code or Unique Entity ID number of the offeror;
3. Include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFQ. Proposals that reject the terms and conditions of the RFQ may be excluded from consideration;
4. Acknowledgment of Solicitation Amendments (SF-30), if any;
5. Confirmation of the ability to meet the period of performance as contained herein;
6. Provide a technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation.

Technical Submission including but not limited to equipment specifications, manuals, and photographs;

7. TECHNICAL CAPABILITY/CONTRACTOR / RESPONSIBILITY CERTIFICATION STATEMENT - See Technical Capability Form

8. Specifications

Vendor shall certify for equipment being quoted that his product meets each capability listed below by initialing at the bottom. In order to be considered for award, this must be completed and submitted with your quote.

Vendor hereby certifies that his/her service meets or exceeds all specifications in this solicitation and found within Attachment 1, in their entirety, with no exceptions. _____ (Initial)

Award will be made for the technically acceptable item or combination of technically acceptable items that result in the lowest aggregate price to the Government.

Award may or may not be made without any type of discussions or negotiations. This is based on the Contracting Officer's determination after an evaluation has been completed on all quotations.

Technical Acceptability: Technical Acceptability will be evaluated to determine an overall rating of "acceptable" or "unacceptable". This will be determined by evaluating the ability of the vendor to provide equipment that meets all requirements and demonstrates a thorough knowledge and understanding of the Specification requirements. It is the contractor's responsibility to ensure that their quotation clearly demonstrates their ability to perform these requirements. Technical acceptability will be defined as follows:

Technical Ratings

Rating Description

Acceptable Quote meets all of the requirements identified

Unacceptable Quote does not meet all of the requirements identified

Failure to meet any technical requirement for an item (or specification) will make the quotation unacceptable for that item (or that specification).

If an item (or specification) is technically unacceptable, its price will not be considered for award.

Price:

The estimated amount for each line item will be added together to determine the total estimated price which will become the evaluation price.

The vendor's proposed price will be evaluated on the basis of price reasonableness. All prices must be considered fair and reasonable as determined by the Government. **All quotes submitted in response to this solicitation shall stand firm for 30 calendar days from the response date of this solicitation.**

The completion and submission of the above items will constitute a quote and will be considered the vendor's unconditional assent to the terms and conditions of this Solicitation and any attachments and/or exhibits.

Failure to provide all of these documents by the required date and time may preclude a quotation from award consideration at the discretion of the Government.

52.212-4 Terms and Conditions--Commercial Products and Commercial Services.

As prescribed in 12.205(b)(3), insert the following clause:

Terms and Conditions--Commercial Products and Commercial Services (Deviation Date)

(a) *Definitions.* The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights--

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall--

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) *Invoice*. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9 (b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment--*

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall--

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the--

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest*.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by FAR part 33 if-

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon--

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations.*

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record.* This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

Alternate I (Deviation Date). When contemplating a time-and-materials or labor-hour contract, substitute the following paragraphs (a), (b), (i), (l), and (m) for those in the basic clause.

(a) The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference. As used in this clause--

Direct materials means those materials that enter directly into the end product, or that are used or consumed directly in connection with the furnishing of the end product or service.

Hourly rate means the rate(s) prescribed in the contract for payment for labor that meets the labor category qualifications of a labor category specified in the contract that are--

(1) Performed by the contractor;

(2) Performed by the subcontractors; or

(3) Transferred between divisions, subsidiaries, or affiliates of the contractor under a common control.

Materials means--

(1) Direct materials, including supplies transferred between divisions, subsidiaries, or affiliates of the contractor under a common control;

(2) Subcontracts for supplies and incidental services for which there is not a labor category specified in the contract;

(3) Other direct costs (e.g., incidental services for which there is not a labor category specified in the contract, travel, computer usage charges, etc.);

(4) The following subcontracts for services which are specifically excluded from the hourly rate: *[Insert any subcontracts for services to be excluded from the hourly rates prescribed in the schedule.];* and

(5) Indirect costs specifically provided for in this clause.

Subcontract means any contract, as defined in FAR 2.101, entered into with a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract including transfers between divisions, subsidiaries, or affiliates of a contractor or subcontractor. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) *Inspection/Acceptance.*

(1) The Government has the right to inspect and test all materials furnished and services performed under this contract at all places and times before acceptance. The Government will perform inspections and tests in a manner that will not unduly delay the work.

(2) If the Government performs inspection or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish and shall require subcontractors to furnish all reasonable facilities and assistance for the safe and convenient performance of these duties.

(3) Unless otherwise specified in the contract, the Government will accept or reject services and materials at the place of delivery as promptly as practicable after delivery, and they will be presumed accepted 60 days after the date of delivery, unless accepted earlier.

(4) At any time during contract performance, but not later than 6 months (or such other time as may be specified in the contract) after acceptance of the services or materials last delivered under this contract, the Government may require the Contractor to replace or correct services or materials that at time of delivery failed to meet contract requirements. Except as otherwise specified in paragraph (b)(6) of this clause, the cost of replacement or correction shall be determined under paragraph (i) of this clause, but the "hourly rate" for labor hours incurred in the replacement or correction shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified below, the portion of the "hourly rate" attributable to profit shall be 10 percent. The Contractor shall not tender for acceptance materials and services required to be replaced or corrected without disclosing the former requirement for replacement or correction, and, when required, shall disclose the corrective action taken. *[Insert portion of labor rate attributable to profit.]*

(5)(i) If the Contractor fails to proceed with reasonable promptness to perform required replacement or correction, and if the replacement or correction can be performed within the ceiling price (or the ceiling price as increased by the Government), the Government may--

(A) By contract or otherwise, perform the replacement or correction, charge to the Contractor any increased cost, or deduct such increased cost from any amounts paid or due under this contract; or

(B) Terminate this contract for cause.

(ii) Failure to agree to the amount of increased cost to be charged to the Contractor shall be a dispute under the Disputes clause of the contract.

(6) Notwithstanding paragraphs (b)(4) and (5) of this clause, the Government may, at any time, require the Contractor to remedy by correction or replacement, without cost to the Government, any failure by the Contractor to comply with the requirements of this contract, if the failure is due to--

(i) Fraud, lack of good faith, or willful misconduct on the part of the Contractor's managerial personnel; or

(ii) The conduct of one or more of the Contractor's employees selected or retained by the Contractor after any of the Contractor's managerial personnel has reasonable grounds to believe that the employee is habitually careless or unqualified.

(7) This clause applies in the same manner and to the same extent to corrected or replacement materials or services as to materials and services originally delivered under this contract.

(8) The Contractor has no obligation or liability under this contract to correct or replace materials and services that at time of delivery do not meet contract requirements, except as provided in this clause or as may be otherwise specified in the contract.

(9) Unless otherwise specified in the contract, the Contractor's obligation to correct or replace Government-furnished property shall be governed by the clause pertaining to Government property.

(i) *Payments.*

(1) *Work performed.* The Government will pay the Contractor as follows upon the submission of commercial invoices approved by the Contracting Officer:

(i) *Hourly rate.*

(A) The amounts shall be computed by multiplying the appropriate hourly rates prescribed in the contract by the number of direct labor hours performed. Fractional parts of an hour shall be payable on a prorated basis.

(B) The rates shall be paid for all labor performed on the contract that meets the labor qualifications specified in the contract. Labor hours incurred to perform tasks for which labor qualifications were specified in the contract will not be paid to the extent the work is performed by individuals that do not meet the qualifications specified in the contract, unless specifically authorized by the Contracting Officer.

(C) Invoices may be submitted once each month (or at more frequent intervals, if approved by the Contracting Officer) to the Contracting Officer or the authorized representative.

(D) When requested by the Contracting Officer or the authorized representative, the Contractor shall substantiate invoices (including any subcontractor hours reimbursed at the hourly rate in the schedule) by evidence of actual payment, individual daily job timecards, records that verify the employees meet the qualifications for the labor categories specified in the contract, or other substantiation specified in the contract.

(E) Unless the Schedule prescribes otherwise, the hourly rates in the Schedule shall not be varied by virtue of the Contractor having performed work on an overtime basis.

(1) If no overtime rates are provided in the Schedule and the Contracting Officer approves overtime work in advance, overtime rates shall be negotiated.

(2) Failure to agree upon these overtime rates shall be treated as a dispute under the Disputes clause of this contract.

(3) If the Schedule provides rates for overtime, the premium portion of those rates will be reimbursable only to the extent the overtime is approved by the Contracting Officer.

(ii) *Materials.*

(A) If the Contractor furnishes materials that meet the definition of a commercial product at FAR 2.101, the price to be paid for such materials shall not exceed the Contractor's established catalog or market price, adjusted to reflect the--

(1) Quantities being acquired; and

(2) Any modifications necessary because of contract requirements.

(B) Except as provided for in paragraph (i)(1)(ii)(A) and (D)(2) of this clause, the Government will reimburse the Contractor the actual cost of materials (less any rebates, refunds, or discounts received by the contractor that are identifiable to the contract) provided the Contractor--

(1) Has made payments for materials in accordance with the terms and conditions of the agreement or invoice; or

(2) Makes these payments within 30 days of the submission of the Contractor's payment request to the Government and such payment is in accordance with the terms and conditions of the agreement or invoice.

(C) To the extent able, the Contractor shall--

(1) Obtain materials at the most advantageous prices available with due regard to securing prompt delivery of satisfactory materials; and

(2) Give credit to the Government for cash and trade discounts, rebates, scrap, commissions, and other amounts that are identifiable to the contract.

(D) Unless listed below, other direct and indirect costs will not be reimbursed.

(1) *Other direct costs.* The Government will reimburse the Contractor on the basis of actual cost for the following, provided such costs comply with the requirements in paragraph (i)(1)(ii)(B) of this clause: *[Insert each element of other direct costs (e.g., travel, computer usage charges, etc. Insert "None" if no reimbursement for other direct costs will be provided. If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the elements of other direct charge(s) for that order or, if no reimbursement for other direct costs will be provided, insert "None".]*

(2) *Indirect costs (material handling, subcontract administration, etc.).* The Government will reimburse the Contractor for indirect costs on a pro-rata basis over the period of contract performance at the following fixed price: *[Insert a fixed amount for the indirect costs and payment schedule. Insert "\$0" if no fixed price reimbursement for indirect costs will be provided. (If this is an indefinite delivery contract, the Contracting Officer may insert "Each order must list separately the fixed amount for the indirect costs and payment schedule or, if no reimbursement for indirect costs, insert "None")."]*

(2) *Total cost.* The total cost to the Government for the performance of this contract shall not exceed the ceiling price set forth in the Schedule. The Contractor agrees to use its best efforts to perform the work specified in the Schedule and all obligations under this contract within such ceiling price. If at any time the Contractor has reason to believe that the hourly rate payments and material costs that will accrue in performing this contract in the next succeeding 30 days, if added to all other payments and costs previously accrued, will exceed 85 percent of the ceiling price in the Schedule, the Contractor shall notify the Contracting Officer giving a revised estimate of the total price to the Government for performing this contract with supporting reasons and documentation. If at any time during the performance of this contract, the Contractor has reason to believe that the total price to the Government for performing this contract will be substantially greater or less than the stated ceiling price, the Contractor shall so notify the Contracting Officer, giving a revised estimate of the total price for performing this contract, with supporting reasons and documentation. If at any time during performance of this contract, the Government has reason to believe that the work to be required in performing this contract will be substantially greater or less than the stated ceiling price, the Contracting Officer will so advise the Contractor, giving the revised estimate of the total amount of effort to be required under the contract.

(3) *Ceiling price.* The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price in the Schedule, and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth in the Schedule has been increased, any hours expended and material costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the hours expended and material costs had been incurred after the increase in the ceiling price.

(4) *Access to records.* At any time before final payment under this contract, the Contracting Officer (or authorized representative) will have access to the following (access shall be limited to the listing below unless otherwise agreed to by the Contractor and the Contracting Officer):

(i) Records that verify that the employees whose time has been included in any invoice meet the qualifications for the labor categories specified in the contract;

(ii) For labor hours (including any subcontractor hours reimbursed at the hourly rate in the schedule), when timecards are required as substantiation for payment--

(A) The original timecards (paper-based or electronic);

(B) The Contractor's timekeeping procedures;

(C) Contractor records that show the distribution of labor between jobs or contracts; and

(D) Employees whose time has been included in any invoice for the purpose of verifying that these employees have worked the hours shown on the invoices.

(iii) For material and subcontract costs that are reimbursed on the basis of actual cost--

(A) Any invoices or subcontract agreements substantiating material costs; and

(B) Any documents supporting payment of those invoices.

(5) *Overpayments/Underpayments.* Each payment previously made shall be subject to reduction to the extent of amounts, on preceding invoices, that are found by the Contracting Officer not to have been properly payable and shall also be subject to reduction for overpayments or to increase for underpayments. The Contractor shall promptly pay any such reduction within 30 days unless the parties agree otherwise. The Government will pay any such increases within 30 days, unless the parties agree otherwise. The Contractor's payment will be made by check. If the Contractor becomes aware of a duplicate invoice payment or that the Government has otherwise overpaid on an invoice payment, the Contractor shall--

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the--

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury, as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, and then at the rate applicable for each six-month period as established by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) The Contracting Officer will issue a final decision if--

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt in a timely manner;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on--

- (A) The date on which the designated office receives payment from the Contractor;
- (B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
- (C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.
- (vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR part 32 in effect on the date of this contract.
- (viii) Upon receipt and approval of the invoice designated by the Contractor as the "completion invoice" and supporting documentation, and upon compliance by the Contractor with all terms of this contract, any outstanding balances will be paid within 30 days unless the parties agree otherwise. The completion invoice, and supporting documentation, shall be submitted by the Contractor as promptly as practicable following completion of the work under this contract, but in no event later than 1 year (or such longer period as the Contracting Officer may approve in writing) from the date of completion.
- (7) *Release of claims.* The Contractor, and each assignee under an assignment entered into under this contract and in effect at the time of final payment under this contract, shall execute and deliver, at the time of and as a condition precedent to final payment under this contract, a release discharging the Government, its officers, agents, and employees of and from all liabilities, obligations, and claims arising out of or under this contract, subject only to the following exceptions:
- (i) Specified claims in stated amounts, or in estimated amounts if the amounts are not susceptible to exact statement by the Contractor.
- (ii) Claims, together with reasonable incidental expenses, based upon the liabilities of the Contractor to third parties arising out of performing this contract, that are not known to the Contractor on the date of the execution of the release, and of which the Contractor gives notice in writing to the Contracting Officer not more than 6 years after the date of the release or the date of any notice to the Contractor that the Government is prepared to make final payment, whichever is earlier.
- (iii) Claims for reimbursement of costs (other than expenses of the Contractor by reason of its indemnification of the Government against patent liability), including reasonable incidental expenses, incurred by the Contractor under the terms of this contract relating to patents.
- (8) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.
- (9) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.
- (l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work under this contract and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid an amount for direct labor hours (as defined in the Schedule of the contract) determined by multiplying the number of direct labor hours expended before the effective date of termination by the hourly rate(s) in the contract, less any hourly rate payments already made to the Contractor plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system that have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred that reasonably could have been avoided.
- (m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon written request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. Subject to the terms of this contract, the Contractor shall be paid an amount computed under paragraph (i), Payments, of this clause, but the "hourly rate" for labor hours expended in furnishing work not delivered to or accepted by the Government shall be reduced to exclude that portion of the rate attributable to profit. Unless otherwise specified in paragraph (b)(4) of this clause, the portion of the "hourly rate" attributable to profit shall be 10 percent. In the event of termination for cause, the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Feb 2026		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Feb 2026		
52.233-2	Service of Protest. (Deviation 2026-O0038)	Feb 2026		
52.237-1	Site Visit.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		

FAR Clauses Incorporated by Full Text

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR: <https://www.acquisition.gov/browse/index/far>

DFARS: <https://www.acquisition.gov/dfars>

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Acquisition Regulations System, Department of Defense (48 CFR Chapter2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT (S) OF INTEREST (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to _____, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (Jun 2022)
(JUN 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is _____. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

(End of Provision)

L-212-W001 TECHNICAL PROPOSAL – SPECIFIC REQUIREMENTS – COMMERCIAL ITEMS (Oct 2018)
(NAVSEA) (OCT 2018)

(a) The technical proposal shall include responses to clearly demonstrate that all the requirements included in the specifications will be met. It may include brochures, specification sheets or other descriptive literature detailing the features of the items proposed. "Descriptive literature" means information (e.g., cuts, illustrations, drawings, and brochures) that is submitted as part of an offer. Descriptive literature is required to establish, for the purpose of evaluation and award, details of the product offered that are specified elsewhere in the solicitation and pertain to significant elements such as (1) design; (2) materials; (3) components; (4) performance characteristics; and (5) methods of manufacture, assembly, construction, or operation. The term includes only information required to determine the technical acceptability of the offered product. It does not include other information such as that used in determining the responsibility of a prospective Contractor or for operating or maintaining equipment.

(b) The offeror shall discuss clearly and completely how each requirement will be met and reference where the information supporting the statement can be found in the technical information/descriptive literature provided. A mere statement that the offeror understands the requirement and intends to comply IS NOT SUFFICIENT. The offeror must explicitly state how it intends to comply with each of the requirements and demonstrate a comprehensive understanding of the requirements.

(c) If the specification includes identification of a specific make and model on a "brand name or equal" basis, and the offeror states that it will provide the make and model specified, it need not address the salient characteristics included in the Description /Specification/Work Statement. The offeror need only include the following statement - "Requested Brand Name will be supplied."

(End of Provision)

Section M - Evaluation Factors for Award

52.212-2 Evaluation--Commercial Products and Commercial Services.

As prescribed in 12.205(a)(2), insert a provision substantially as follows: (Deviation Date)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

Evaluation factors other than price when combined are significantly more important than price.

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

FAR Clauses Incorporated by Full Text

52.212-2 **Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)** **(Feb 2026)**

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

TECHNICAL CAPABILITY

PAST PERFORMANCE

PRICE

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

M-247-H001 **F.O.B. EVALUATION CRITERIA (NAVSEA) (DEC 2018)** **(Dec 2018)**

OFFERS SUBMITTED ON AN F.O.B. BASIS OTHER THAN THAT SPECIFIED IN SECTION F SHALL BE REJECTED AS UNACCEPTABLE.

(End of Provision)